Temporary
3136

Executive Order

VESTING POWER AND AUTHORITY IN THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTIES FORMERLY BELONGING TO SCHILMANN & BENE AT A PLACE OTHER THAN THE LOCUS OF A MAJOR PORTION THEREOF.

By virtue of the authority vested in me by an Act of Congress entitled "An act to define, regulate, and punish trading with the enemy and for other purposes," approved October 6, 1917, known as the "Trading with the enemy act," and the amendment to such act embodied in "An act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30th, 1918, and prior fiscal years on account of war expenses and for other purposes," approved March 28, 1918, and the amendment to such act embodied in "An act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses and for other purposes," approved November 4, 1918, and all other powers and authorities me hereto enabling, I hereby, in the public interest, make the following determination and order:

The Alien Property Custodian is hereby authorized to sell at public auction at such place in the City of Spokane, Washington, as he or his authorized agent may select the following property: Real Estate

ITEM I. All rights, titles, interest and liens acquired by virtue of payment of taxes upon certain real property situate in the County of Stevens, State of Washington, formerly belonging to American Tungsten Consolidated Corporation, evidenced by the following certificates of delinquency and tax receipts issued by the Treasurer of Stevens County, Washington, as follows:

Certificate No. 4050 for the sum of $55.00 issued to F. C. Allen on the 8th day of October 1915 and assigned by him on the 16th day of December 1915 to Charles S. Cullen for delinquent taxes against the following described property: The W ½ of the NW ¼ and the NE ¼ of the NW ¼ and the NW ¼ of Sec. 13, Tp. 29, N. R. 37 for the years 1912 and 1913.

Tax receipt No. 6072 for $33.10 for taxes for the year 1914 paid on account of Certificate No. 4050 by F. C. Allen and assigned by him on the 16th day of Decen ber 1915 to Charles S. Cullen.

Tax receipt No. 5347 for $31.58 for taxes for the year 1915 paid by Charles S. Cullen on account of Certificate No. 4050.

Tax receipt No. 5346 for $28.00 for taxes for the year 1916 paid by Charles S. Cullen.

Tax receipt of Delinquency No. 4051 issued by the Treasurer of Stevens County, Washington, for the sum of $55.00 in the name of F. C. Allen and dated October 8, 1915, and assigned by F. C. Allen on the 16th day of December 1915, to Charles S. Cullen for taxes delinquent for the years 1912-13 assessed against the following described property: The SE ¼ of the NW ¼ and the N ½ of the SW ¼ and the SE ¼ of Section 13, Township 29, N. R. 37.

Tax receipt No. 6073 for $33.10 for taxes for the year 1914 paid on account of Certificate 405 by F. C. Allen and assigned by him on December 16, 1915, to Charles S. Cullen.

Tax receipt 5345 for $31.50 for taxes for the year 1915 paid on account of certificate No. 4051 by Charles S. Cullen.

Tax receipt No. 5748 for $28.00 for taxes for the year 1916 paid on account of Certificate No. 4051 by Charles S. Cullen.

Tax Certificate of Delinquency No. 4202 for the sum of $1313.45 issued to Charles S. Cullen on the 3rd day of January 1916 by the Treasurer of Stevens County, Washington, for delinquent taxes for the years 1912 and 1913 assessed against the following described property: The SW ¼ of the SW ¼ and the SE ¼ of the SW ¼ of Sec. 13, Tp. 29, N. R. 27.

Tax receipt No. 915 for taxes for the year 1914 paid on account of Certificate 4202 for the sum of $107.05 dated Jan. 3, 1910, and issued to Charles S. Cullen.

Tax receipt No. 5346 for the sum of $98.33 for taxes for the year 1915 paid on account of Certificate No. 4202 and issued to Charles S. Cullen, dated June 15th, 1916.

Tax receipt No. 5749 for $67.40 being for taxes for the year 1916 paid by Charles S. Cullen on account of Certificate No. 4202; together with said certificates, receipts and muniments of said right, title and interest

and

ITEM II. 260 of a total issue of 300 first mortgage 8% bonds of Germania Mining Company due February 21, 1915, of the face value of $250. each dated February 21, 1910, and secured by property located in Stevens County, Washington, described in a trust deed dated February 21, 1910, from Germania Mining Company to Union Trust Company, Spokane, Washington, Trustee, with coupons # 3 and all subsequent coupons thereon together with all rights hitherto inuring to Schilmann & Bene by virtue of said bonds and trust including the right to collect that indebtedness arising out of advance of money in the sum of, to wit, $3,538.66 to said Trustee from Charles S. Cullen, Agent, for the preservation and protection of said trust

and

ITEM III. All right, title and interest in and to the following property:

1 U. S. Bob-sled
1 Road grader
1 Book-keeper's desk, stool and cabinet
1 Office desk and chair
1 Filing cabinet

formerly located on the property of American Tungsten Consolidated Corporation in Stevens County, State of Washington, heretofore seized by the Alien Property Custodian under the "Trading with the enemy act."

My reasons in the public interest for the foregoing determination and order are:

First. Said property is located at a place difficult of access.

Second. It is advantageous that said property be offered for sale at the same time and place as certain shares of stock of American Tungsten Consolidated Corporation, which shares are to be offered for sale in the said City of Spokane by the Alien Property Custodian.

Third. Unnecessary expense may thereby be saved.

Done in the District of Columbia this first day of August, in the year of our Lord one thousand nine hundred and nineteen, and of the independence of the United States of America the one hundred and forty-fourth.

WOODROW WILSON

THE WHITE HOUSE,
1 August, 1919

[No. 3136]